

Presolicitation Notice

SUBJECT* CORRECT MECHANICAL & PLUMBING DEFICIENCIES

GENERAL INFORMATION

CONTRACTING OFFICE'S ZIP CODE*	23667
SOLICITATION NUMBER*	36C24626R0022
RESPONSE DATE/TIME/ZONE	02-24-2026 8:00AM EASTERN TIME, NEW YORK, USA
ARCHIVE	99 DAYS AFTER THE RESPONSE DATE
SET-ASIDE	SDVOSBC
PRODUCT SERVICE CODE*	C1DA
NAICS CODE*	541330
PLACE OF PERFORMANCE	ASHEVILLE VA MEDICAL CENTER 1100 TUNNEL ROAD
POSTAL CODE	ASHEVILLE NC 28805
COUNTRY	USA

CONTACT INFORMATION

CONTRACTING OFFICE ADDRESS	Department of Veterans Affairs Network Contracting Office 6 100 Emancipation Drive Hampton VA 23667
POINT OF CONTACT*	

ADDITIONAL INFORMATION

AGENCY'S URL	
URL DESCRIPTION	
AGENCY CONTACT'S EMAIL ADDRESS	
EMAIL DESCRIPTION	

***=Required Field**

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DESCRIPTION

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DESCRIPTION: This is a Pre-Solicitation Notice for the establishment of an Architect-Engineering (A-E) Design Contract with services to be performed at the Charles George VA Medical Center located at Asheville, NC 28805. This requirement is being executed under a 100% Set-Aside to Service-Disabled Veteran Owned Small Business (SDVOSB) firms. **THIS ANNOUNCEMENT IS NOT A REQUEST FOR PROPOSAL; NO SOLICITATION PACKAGE WILL BE ISSUED UNTIL AFTER AN EVALUATION HAS BEEN MADE ON THE PROVIDED SF-330s.** The SF-330 can be downloaded through the GSA Forms Library at: <http://www.gsa.gov/portal/forms/type/TOP>, scroll down to locate and click on the SF-330 hyperlink entitled, "Architect-Engineer Qualifications." Interested firms should submit their SF-330, Parts I and II, to chanel.johnson@va.gov. **The SF-330s are due no later than 8:00 AM, EST, February 24, 2026.**

SCOPE OF WORK: The Western North Carolina VA Healthcare System (WNCVAHCS) requires an Architect/Engineer (A/E) design firm to perform the design and provide construction documents and associated specifications for the correction of mechanical and plumbing FCA deficiencies in Building 47 at the Charles George VA Medical Center.

Intent

The A/E firm shall perform the design to provide construction documents for all facets of the complete construction and activation of corrections to the mechanical and plumbing deficiencies as detailed in the Facility Condition Assessment report for Building 47 at the Charles George VA Medical Center. The component plan sets shall address items throughout the 330,000 square foot main Building 47.

OFFERORS WILL BE EVALUATED ON THE FOLLOWING CRITERIA:

The submitted SF-330's shall be a maximum of 30 total pages. All necessary information to meet the 5 criterions shall be contained within those 30 pages.

The submitted SF-330s will be evaluated on the following criteria:

This acquisition will be in accordance with FAR Part 36.602-1 and VAAR Part 836.601-1. The following evaluation criteria will be used to evaluate SF 330 technical proposals:

The A/E must demonstrate its qualifications with respect to the published evaluation criteria for all services. Evaluation Criteria (1) through (4) are considered the most important and listed in descending order of importance; Criteria (5) and Criteria (6) are of significantly less importance than (1) through (4) but the associated value of 1 through 4 are in a declining value and order of importance. Criterion (1) is the highest with Criterion (5) and (6) being the lowest.

- (1) Professional qualifications necessary for satisfactory performance of required services;
- (2) Specialized experience and technical competence in the type of work required, including, where appropriate, experience in medical facility design;
- (3) Capacity to accomplish the work in the required time;
- (4) Past performance on contracts with Government agencies and private industry in terms of cost control, quality of work, and compliance with performance schedules;
- (5) Location in the general geographical area of the project and knowledge of the locality of the project; if application of this criterion leaves an appropriate number of qualified firms,

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given the nature and size of the project.

(6) Record of significant claims against the firm because of improper or incomplete architectural and engineering services.

CRITERION 1 - Professional Qualifications necessary for satisfactory performance of required services. Offerors will be evaluated in terms of the qualifications, competence and experience of the key personnel and technical team proposed to accomplish this work. Key personnel are individuals who will have major contract or project management responsibilities and/or will provide unusual or unique expertise. Provide a balanced licensed and or certified workforce in the following disciplines – **Engineers specializing in Mechanical and Electrical Engineering and Architectural design.**

Submission requirements: Provide resumes for all proposed key personnel. Resumes are limited to one page each and should cite project specific experience and indicate proposed role in this contract. Provide professional registration, certification, licensure and/or accreditation. Indicate participation of key personnel in example projects in the SF-330 Part 1 Section G.

CRITERION 2 - Specialized experience and technical competence in the type of work required, including, where appropriate, experience in medical Facility design. Offerors will be evaluated on specialized experience and technical competence in the performance of services like those anticipated under this contract about:

- Special knowledge of mechanical systems, ductwork, controls and plumbing systems at Medical Facilities
- Experience working in and around an operational Hospital
- Specific experience and qualifications of personnel proposed for assignment to the project and their record of working together as a team.

Submission requirements: Provide up to five (5) projects completed or substantially completed within the past ten (10) years that best illustrate specialized experience of the proposed team in the areas outlined above. Example projects shall note project's square footage. **All projects provided in the SF-330 must be completed by the office/branch/regional office/individual team member proposed to manage and/or perform work under this contract.** To enable verification, firms should include the DUNS number along with each firm name in the SF-330 Part 1, Section F Item 25 "Firms from Section C Involved in this Project," block (1). Include a contract number or project identification number in block 21. Include an e-mail address and phone number for the point of contact in block 23(c). Include in the project description, the contract period of performance, award contract value, current contract value, and summary of the work performed that demonstrates relevance to specialized experience as outlined above. If the contractor served as a subcontractor on a project, indicate the value of the work they provided towards the performance of the overall project. If a project was performed by a joint venture, and not all joint venture partners are on the team proposed for this contract, the offeror/team should specifically address the work performed by the joint venture partner offering/teaming on this contract. Likewise, if the offeror/team member worked as a subcontractor on a project, the description should clearly describe the work performed by the offeror/team member and the roles and responsibilities of each on the project, rather than the work performed on the project as a whole. If the project description does not clearly delineate the work performed by the entity/entities offering/teaming on this contract, the project could be eliminated from consideration. Additionally, Firms are required to return and submit the Attachment B titled Criterion 2 Format, which will clearly demonstrate specific experiences and qualifications of personnel proposed for assignment to the project and their record of working together as a team. Specifically list similar scoped projects covering the previous 10 years and clearly show participation.

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(See SF330 Part I Section G, but not excluding other information provided on the SF330 and supporting documentation.)

NOTE: If the Offeror is a joint venture, information should be submitted as a joint venture; however, if there is no information for the joint venture, information should be submitted for either joint venture partner, not to exceed a total of six (6) projects for this criterion. Projects shall be submitted on the SF-330. For submittal purposes, a task order on an IDIQ contract is considered a project, as is a stand-alone contract award. Do not list an IDIQ contract as an example of a completed project. Instead, list relevant completed task orders or stand-alone contract awards that fit within the definition above. Examples of project work submitted that do not conform to this requirement will not be evaluated.

Failure to provide requested data, accessible points of contact, or valid phone numbers could result in a firm being rated lower.

All information for Criterion 2 should be submitted in Part 1, Section F of the SF-330. The Government WILL NOT consider information submitted in addition to Part 2, Section F in evaluating Criterion 2.

CRITERION 3 - Capacity to accomplish the work in the required time. Firms/teams will be evaluated in terms of their ability to plan for and manage work under the contract and capacity to accomplish the work in the required time.

Submission requirements: Describe the firm's ability to concurrently perform and manage multiple projects in different locations to meet aggressive schedules, multiple disciplines, and control costs and the firm's capacity to accomplish multiple projects simultaneously. Additionally, Prospective contractors are required to provide a list of current projects with a design fee of greater than \$25,000 currently being designed in the firms' office. Indicate the availability of the proposed project team (including sub-consultants) for the specified contract performance period in terms of: (1.) both the average and maximum number of projects being worked simultaneously for the previous twelve (12) month period, for each key personnel member, (2.) the number of projects currently being worked by each key personnel member identified in the SF330, and (3.) the number of projects that could be added to workload, given size and complexity.

CRITERION 4 - Past Performance – Offerors will be evaluated on past performance with Government agencies and private industry in terms of work quality, compliance with schedules, cost control, and stakeholder/customer satisfaction. Evaluating past performance and experience will include information provided in Past Performance Questionnaires (PPQs) or CPARS/ACASS for Criterion 1 projects and may include other information provided by the firm, customer inquiries, Government databases, and other information available to the Government including contacts with points of contact in other criteria. Failure to provide requested data, accessible points of contact, or valid phone numbers could result in a firm being rated lower. NOTE: Past performance information for projects listed under Criterion 1.

Project Recency: A project will be considered recent only if performance was completed within five (5) years of the date of issuance of this public announcement. Ongoing projects will not be considered as no accurate performance record can exist for work not yet completed.

Submission requirements: SUBMIT A COMPLETED CPARS/ACASS EVALUATION FOR EACH PROJECT UNDER CRITERION 1. IF THERE IS NOT A COMPLETED CPARS/ACASS EVALUATION, the Past Performance Questionnaire (PPQ) included in this notice is provided for the offeror or its team members to submit to the client for each project the offeror includes under Criterion 1. AN OFFEROR SHALL NOT SUBMIT A PPQ WHEN A COMPLETED CPARS/ACASS IS AVAILABLE. IF A CPARS/ACASS EVALUATION IS NOT AVAILABLE, ensure correct phone numbers and email addresses are provided for the client point of contact. Submit no less than three (3) and no more than five (5) past performance references for recent and relevant projects identified on

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SF330 Part I Section F. Completed PPQs should be submitted with your SF-330. If the offeror is unable to obtain a completed PPQ from a client for a project(s) before the response date set forth in this notice, offerors should complete and submit with their responses the first page of the PPQ (Attachment A), which will provide contract and client information for the respective project(s). Offerors may submit a PPQ previously submitted under a different Notice/RFP (legible copies are acceptable) if it is on the same form as posted with this Synopsis. Offerors should follow up with clients/references to ensure timely submittal of questionnaires. If requested by the client, questionnaires may be submitted directly to the Government's point of contact, Network Contracting Office 6, Attn: Chanel Johnson via email at chanel.johnson@va.gov prior to the response date. Offerors shall not incorporate by reference into their response PPQs or CPARS previously submitted in response to other A/E services procurements. However, this does not preclude the Government from utilizing previously submitted PPQ information in the past performance evaluation.

CRITERION 5 - Location in the general geographical area (Asheville, NC) and knowledge of the (Asheville, NC); *provided*, that application of this criterion leaves an appropriate number of qualified firms, given the nature and size of the project. Provided that the application of this criterion leaves an appropriate number of qualified firms, given the nature and size of the contract, firms/teams will be evaluated on the locations of their office or offices that will be performing the work under this contract.

Submission requirements: Indicate firms/teams' location, including main offices, branch offices and any sub consultants' offices and demonstrate how this will be advantageous to the Government.

CRITERION 6 - Record of significant claims against the firm because of improper or incomplete architectural and engineering services.

SELECTION PROCESS: The agency has convened an evaluation board for the evaluation of responses to this notice. Responses will be evaluated in accordance with the Selection of Architects and Engineers Statute (Public Law 92-582), formerly known as the Brooks Act, and implemented in Federal Acquisition Regulation (FAR) 36.6. Specifically, SF 330 submissions will be evaluated to identify the most highly qualified firms, using the selection criteria identified above. Discussions will be held with at least three (3) of the most highly qualified firms. Interviews may be conducted. The processes at FAR 36.602-4 and FAR 36.606 will then be followed.

SELECTION INTERVIEW:

Interviews shall be scheduled with firms slated as the most highly qualified. Firms slated for interviews will be asked a series of established questions. Elaborate presentations are not desired.

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All design and work will conform to the current edition of the VA Master Specifications and VA Design Standards as published at the following site: www.cfm.va.gov; ASME, OSHA, IBC 2009, NFPA and NEC building codes and standards. Coordinate all work through the COR of Facilities Management Service. Contractor is responsible for all cleanups and refuse disposal throughout the construction period. The A-E firm will prepare drawings and specifications in enough detail such that qualified outside General Contracting companies can prepare accurate and timely proposals for the desired construction work. Microsoft Project scheduling and management software will be used by both the A-E and Contractors to allow for regular tracking of schedules and work by the VA Medical Center. Schedules

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with MS Project will be regularly sent to the COR upon project initiation and whenever significant changes occur in the schedule. **The estimated magnitude of construction is between \$ 5,000,000.00 and \$10,000,000.00.** The A-E will provide an initial estimate of cost to perform the above work and will design only those items that can be provided within the cost limitation. The Estimated Cost of Construction (ECC) shall only be provided to the Contractor in which a formal proposal is sought for the purposes of providing a proposal. The Medical Center must remain operational throughout the construction period and a detailed sequence of work will be provided by the A-E to minimize impact of the construction. The A-E will provide documents at each submission as indicated in the statement of work. The NAICS code for this procurement will be 541330, Engineering Services. The current small business size standard for 541330 is \$25.5 Million.

DESIGN COSTS: All offerors are advised that in accordance with VAAR 836.606-71(a) the total cost of the architect or engineer services contracted for must not exceed six percent (6%) of the estimated cost of the construction project plus any fees for related services and activities. Additionally, FAR 52.236-22 Design Within Funding Limitations, will be applicable to this procurement action. Design limitation costs will be provided to the most highly rated A-E firm(s) selected in accordance with the outlined process.

LIMITATIONS ON SUBCONTRACTING: In accordance with VAAR 852.219-73, VA Notice of Total Set-Aside for Verified Service-Disabled Veteran-Owned Small Business and 13 CFR 125.6, a service-disabled veteran-owned small business concern (SDVOSB) agrees that, in the performance of the contract, it will not pay more than 50% of the amount paid by the government to firms that are not similarly situated. Firms that are “similarly situated” are those that are also CVE-registered SDVOSBs.

Requirement for Electronic Submission

Unless paper offers are specifically authorized, all responses to this pre-solicitation notice must be submitted electronically as described below. The only acceptable paper form for this requirement is the receipt of past performance questionnaires. Failure to comply with this requirement may jeopardize the possibility of receiving an award for the contract due to non-compliance with the terms of the solicitation. You must submit your electronic offer, and any supplemental information (such as spreadsheets, backup data, technical information), using any of the electronic formats and media described below.

In addition, contractors are notified of the award via an electronic Notice of Award e-mail. The award document will be attached to the Notice of Award e-mail.

Acceptable Electronic Formats (Software) for Submission of Offers

1. Files readable using the current Microsoft* Office version Products: Word, Excel, PowerPoint, or Access. Spreadsheet documents must be sent in a format that includes all formulas, macro, and format information. Print or scan images of spreadsheets are not acceptable. Please see security note below for [caution regarding use of macros](#). When submitting construction drawings contractors are required to submit one set in AutoCAD and one set in Adobe PDF. (Purpose: contracting can open the PDF version and engineering can open AutoCAD files)
2. Files in Adobe* PDF (Portable Document Format) Files: When scanning documents scanner resolution should be set to 200 dots per inch, or greater.
3. Another electronic format. If you wish to submit an offer using another format than those described in these instructions, e-mail the Contracting Officer/Specialist who issued the solicitation. Please submit your request at least five (5) calendar days before the scheduled closing date of the solicitation. Request a decision as to the format acceptability and make sure you receive approval of the alternate format before using it to send your offer.

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4. Please note that we can no longer accept .zip files due to increasing security concerns.

E-mail Submission Procedures: For simplicity in this guidance, all submissions in response to a solicitation will be referred to as offers.

- a. **Subject Line:** Include the solicitation number, name of company, and closing date of solicitation.
- b. **Size: Maximum size of the e-mail message shall not exceed ten (10) megabytes. The SF330, in its entirety, shall not exceed one email of 5MB.** The SF330 (not including past performance questionnaires) are limited to **30 pages. If the page limits are exceeded, the pages in excess of the limit will not be read nor considered.** Only one email is permitted unless otherwise stated in this paragraph or in writing by the Contract Officer submitting the solicitation. Due to VA IT Security protocols, email submissions are limited to 10Mb per email. Furthermore, it is the sole responsibility of the prospective firms to confirm receipt of their submission in its entirety prior to the closing date & time of their submission in response to this synopsis.

The Microsoft Outlook © Email time/date stamp will be used to date and time stamp offers for the official record of receipt for the submission. The date and time stamp in recipient's "inbox" is the official record of receipt.

Security Issues, Late Bids, Unreadable Offers

1. Late submission of offers is outlined at FAR Parts 52.212-1(f), 52.214-7, and 52.215-1(c)(3). Attention is warranted to the portion of the provision that relates to the timing of submission.
2. Please see FAR 15.207(c) for a description of the steps the Government shall take with regard to unreadable offers.
3. To avoid rejection of an offer, vendors must make every effort to ensure their electronic submission is **virus-free**. Submissions or portions thereof submitted and which the automatic system detects the presence of a virus, or which are otherwise unreadable will be treated as "unreadable" pursuant to FAR Parts 14.406 and FAR 15.207(c).
4. The virus scanning software used by our e-mail systems cannot always **distinguish a macro from a virus**. Therefore, sending a macro embedded in an e-mail message or an e-mail attachment may cause the e-mail offer to be quarantined. You may send both the spreadsheet and the spreadsheet saved in PDF format to ensure that your proposal is readable.
5. Password protecting your submission is not permitted. The Contracting Officer will file the offer electronically which will allow access only by designated individuals.

VHA Supplemental Contract Requirements for Ensuring Adequate COVID-19 Safety Protocols for Federal Contractors

1. Contractor employees who work in or travel to VHA locations must comply with the following:
 - a. Documentation requirements:
 - 1) If fully vaccinated, shall show proof of vaccination.
 - i. NOTE: Acceptable proof of vaccination includes a signed record of immunization from a health care provider or pharmacy, a copy of the COVID-19 Vaccination Record Card (CDC Form MLS-319813_r, published on September 3, 2020), or a copy of medical records documenting the vaccination.
 - 2) If unvaccinated and granted a medical or religious exception, shall show negative COVID-19 test results dated within three calendar days prior to desired entry date. Test must be approved

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by the Food and Drug Administration (FDA) for emergency use or full approval. This includes tests available by a doctor's order or an FDA approved over-the-counter test.

- 3) Documentation cited in this section shall be digitally or physically maintained on each contractor employee while in a VA facility and is subject to inspection prior to entry to VA facilities and after entry for spot inspections by Contracting Officer Representatives (CORs) or other hospital personnel.
 - 4) Documentation will not be collected by the VA; contractors shall, at all times, adhere to and ensure compliance with federal laws designed to protect contractor employee health information and personally identifiable information.
2. Contractor must immediately notify their COR or Contracting Officer if contract performance is jeopardized due to contractor employees being denied entry into VA Facilities.

Important Notice: This is a 100% Service-Disabled Veteran-Owned Small Business (SDVOSB) set-aside. Offerors must be certified as an SDVOSB by the Small Business Administration (SBA). Offerors must be both VISIBLE and CERTIFIED in the Small Business Administration (SBA) Small Business Search (SBS) database (<https://search.certifications.sba.gov/>) at the time of submission of offers and at the time of award. Failure to be both VERIFIED by SBA and CERTIFIED on the SBA SBS website at the time of submission of offers and at the time of award will result in the offeror's proposal being deemed non-responsive to the solicitation.

Important addendum to 852.219-73 VA NOTICE OF SERVICE-DISABLED VETERAN-OWNED SMALL BUSINESS SET ASIDE: VA's Vendor Information Pages (VIP) database is no longer active. Small Business Administration now certifies SDVOSB Status. Offerors must be shown as certified on SBA's Small Business Search (SBA SBS) database at <https://search.certifications.sba.gov/>.

852.219-73 VA Notice of Total Set-Aside for Verified Service-Disabled Veteran-Owned Small Businesses.

As prescribed in 819.7011, insert the following clause:

VA Notice of Total Set-Aside for Verified Service-Disabled Veteran-Owned Small Businesses (NOV 2022)

(a) Definition. for the Department of Veterans Affairs, "Service-disabled Veteran-owned small business concern or SDVOSB":

(1) Means a small business concern -

(i) Not less than 51 percent of which is owned by one or more service-disabled Veterans or, in the case of any publicly owned business, not less than 51 percent of the stock of which is owned by one or more service-disabled Veterans or eligible surviving spouses (see VAAR 802.201, Surviving Spouse definition);

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(ii) The management and daily business operations of which are controlled by one or more service-disabled Veterans (or eligible surviving spouses) or, in the case of a service-disabled Veteran with permanent and severe disability, the spouse or permanent caregiver of such Veteran.

(iii) The business meets Federal small business size standards for the applicable North American Industry Classification System (NAICS) code identified in the solicitation document.

(iv) The business has been verified for ownership and control pursuant to 38 CFR part 74 and is listed in VA's Vendor Information Pages (VIP) database at <https://www.vetbiz.va.gov/vip/>; and

(v) The business will comply with VAAR subpart 819.70 and Small Business Administration (SBA) regulations regarding small business size and government contracting programs at 13 CFR parts 121 and 125, provided that any reference therein to a service-disabled veteran-owned small business concern or SDVO SBC, is to be construed to apply to a VA verified and VIP-listed SDVOSB, unless otherwise stated in this clause.

(2) The term "Service-disabled Veteran" means a Veteran, as defined in 38 U.S.C. 101(2), with a disability that is service-connected, as defined in 38 U.S.C. 101(16).

(3) The term "small business concern" has the meaning given that term under section 3 of the Small Business Act (15 U.S.C. 632).

(4) The term "small business concern owned and controlled by Veterans with service-connected disabilities" has the meaning given the term "small business concern owned and controlled by service-disabled veterans" under section 3(q)(2) of the Small Business Act (15 U.S.C. 632(q)(2)), except that for a VA contract the firm must be listed in the VIP database (see paragraph (a)(1)(iv) of this clause).

(b) General.

(1) Offers are solicited only from VIP-listed SDVOSBs. Offers received from entities that are not VIP-listed SDVOSBs at the time of offer shall not be considered.

(2) Any award resulting from this solicitation shall be made to a VIP-listed SDVOSB who is eligible at the time of submission of offer(s) and at the time of award.

(3) The requirements in this clause apply to any contract, order or subcontract where the firm receives a benefit or preference from its designation as an SDVOSB, including set-asides, sole source awards, and evaluation preferences.

(c) Representation. Pursuant to 38 U.S.C. 8127(e), only VIP-listed SDVOSBs are considered eligible to receive award of a resulting contract. By submitting an offer, the prospective contractor represents that it is an eligible SDVOSB as defined in this clause, 38 CFR part 74, and VAAR subpart 819.70.

(d) Agreement. When awarded a contract action, including orders under multiple-award contracts, an SDVOSB agrees that in the performance of the contract, the SDVOSB shall comply with requirements in VAAR subpart 819.70 and SBA regulations on small business size and government contracting programs at 13 CFR part 121 and part 125, including the non-manufacturer rule and limitations on subcontracting requirements in 13 CFR 121.406(b) and 13 CFR 125.6. Unless otherwise stated in this clause, a requirement in 13 CFR parts 121 and 125 that applies to an SDVO SBC, is to be construed to also apply to a VIP-listed SDVOSB. For the purpose of limitations on subcontracting, only VIP-listed SDVOSBs

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(including independent contractors) shall be considered eligible and/or “similarly situated” (i.e., a firm that has the same small business program status as the prime contractor). An otherwise eligible firm further agrees to comply with the required certification requirements in this solicitation (see 852.219-75 or 852.219-76 as applicable). These requirements are summarized as follows:

(1) Services. In the case of a contract for services (except construction), the SDVOSB prime contractor will not pay more than 50% of the amount paid by the government to the prime for contract performance to firms that are not VIP-listed SDVOSBs (excluding direct costs to the extent they are not the principal purpose of the acquisition and the SDVOSB/VOSB does not provide the service, such as airline travel, cloud computing services, or mass media purchases). When a contract includes both services and supplies, the 50 percent limitation shall apply only to the service portion of the contract

(2) Supplies/products.

(i) In the case of a contract for supplies or products (other than from a non-manufacturer of such supplies), the SDVOSB prime contractor will not pay more than 50% of the amount paid by the government to the prime for contract performance, excluding the cost of materials, to firms that are not VIP-listed SDVOSBs. When a contract includes both supply and services, the 50 percent limitation shall apply only to the supply portion of the contract.

(ii) In the case of a contract for supplies from a non-manufacturer, the SDVOSB prime contractor will supply the product of a domestic small business manufacturer or processor, unless a waiver as described in 13 CFR 121.406(b)(5) has been granted. Refer to 13 CFR 125.6(a)(2)(ii) for guidance pertaining to multiple item procurements.

(3) General construction. In the case of a contract for general construction, the SDVOSB prime contractor will not pay more than 85% of the amount paid by the government to the prime for contract performance, excluding the cost of materials, to firms that are not VIP-listed SDVOSBs.

(4) Special trade construction contractors. In the case of a contract for special trade contractors, no more than 75% of the amount paid by the government to the prime for contract performance, excluding the cost of materials, may be paid to firms that are not VIP-listed SDVOSBs.

(5) Subcontracting. An SDVOSB must meet the NAICS size standard assigned by the prime contractor and be listed in VIP to count as similarly situated. Any work that a first tier VIP-listed SDVOSB subcontractor further subcontracts will count towards the percent of subcontract amount that cannot be exceeded. For supply or construction contracts, the cost of materials is excluded and not considered to be subcontracted. When a contract includes both services and supplies, the 50 percent limitation shall apply only to the portion of the contract with the preponderance of the expenditure upon which the assigned NAICS is based. For information and more specific requirements, refer to 13 CFR 125.6.

(e) Required limitations on subcontracting compliance measurement period. An SDVOSB shall comply with the limitations on subcontracting as follows:

X By the end of the base term of the contract or order, and then by the end of each subsequent option period; or

__ By the end of the performance period for each order issued under the contract.

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(f) Joint ventures. A joint venture may be considered eligible as an SDVOSB if the joint venture is listed in VIP and complies with the requirements in 13 CFR 125.18(b), provided that any requirement therein that applies to an SDVO SBC is to be construed to apply to a VIP-listed SDVOSB. A joint venture agrees that, in the performance of the contract, the applicable percentage specified in paragraph (d) of this clause will be performed by the aggregate of the joint venture participants.

(g) Precedence. The VA Veterans First Contracting Program, as defined in VAAR 802.101, subpart 819.70, and this clause, takes precedence over any inconsistencies between the requirements of the SBA Program for SDVO SBCs, and the VA Veterans First Contracting Program.

(h) Misrepresentation. Pursuant to 38 U.S.C. 8127(g), any business concern, including all its principals, that is determined by VA to have willfully and intentionally misrepresented a company's SDVOSB status is subject to debarment from contracting with the Department for a period of not less than five years (see VAAR 809.406-2 Causes for Debarment).

(End Clause)

See attached document: Attachment A - Past Performance Questionnaire.

See attached document: Attachment B - Criterion 2 Format.